



VIRGINIA THEOLOGICAL SEMINARY

STAFF HANDBOOK

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I. INTRODUCTION

Introductory Statement. Protestant Episcopal Theological Seminary in Virginia d/b/a Virginia Theological Seminary (Seminary) recognizes that talented, diligent and dedicated people are the key to success. The Seminary's strength depends on the contributions made by each person within the organization. To ensure continued success at Virginia Theological Seminary, it is important that all employees understand and follow the Seminary's policies. This Employee Handbook contains some of those key policies, which will assist employees in better understanding how the Seminary works and operates.

Description of Employee Handbook. The purpose of this handbook is to provide guidelines to enable all employees to understand the conditions of their employment, to ensure fair and consistent treatment, to clarify the tasks of each employee, to outline the office organization and to define the Seminary's policies for handling the myriad of questions and problems that arise in the daily work environment. The Seminary expects each of its employees to read this Employee Handbook carefully and to internalize it, as it is and will be a valuable reference in understanding the general policies and conditions of employment with the Seminary. All employees are asked to read and review this handbook upon receipt, as well as when they have a question about a Seminary policy. A copy of this handbook is available in the Seminary's business office or on the Human Resources (HR) HUB. Employees must also be familiar with all Seminary policies, as a violation of Seminary policy may result in discipline, up to and including termination of employment.

This Employee Handbook is the Seminary's latest version. It supersedes all previously issued Employee Handbooks and inconsistent verbal or written policies or statements about policies. The Seminary reserves the right to add to, modify, suspend, rescind, delete, interpret and administer this Employee Handbook, including any of the policies contained in it, at any time, with or without notice. All such additions, modifications, suspensions, rescissions or deletions must be made in writing. No oral statement or communication may change any provision of this Employee Handbook.

Please note that this Employee Handbook is not a contract. As such, none of the Seminary's policies or benefit plans, including those contained or described in this Employee Handbook, constitute (or are intended to constitute) an express or implied contract. Other than the Seminary Dean or their designee, no Seminary employee has the authority to enter into a contract of employment – either express or implied – that changes or alters the at-will nature of an employee's employment with the Seminary. And any such contract of employment authorized by management must be in writing and signed by both the employee and the Seminary Dean or their designee.

This handbook will be used as the essential reference for questions concerning Seminary organization and policy, employer-employee interactions and expectations and other topics related to the efficient operation of the Seminary. Please understand that not all the Seminary's day-to-day policies, procedures or expectations are set out in this Employee Handbook. This handbook summarizes some of the more important Seminary policies. If an employee has a question about this Employee Handbook or a policy contained in it, a question not answered by this handbook, or a question about any other Seminary policy, procedure or expectation, they are to address it with management. In addition, it is important that all employees know the Seminary has an open door-policy that encourages every employee to bring any question or concern to management for identification, notice and resolution.

This Employee Handbook is the property of Virginia Theological Seminary. It must be returned to the Seminary at end of employment, or upon request. If this handbook is lost or stolen, please inform management and ask for another copy or download it from the HR HUB.

Employment At-Will. Unless stated otherwise in a written employment agreement signed by the Seminary Dean or their designee, all employment with Virginia Theological Seminary is on an at-will basis. This means that each employee's employment may be terminated at any time, for any reason or no reason, with or without cause, with or without notice, by the employee or by the Seminary. In connection with this employment at-will policy, the Seminary reserves the right to modify each of its jobs, positions and terms and conditions of each employee's employment, in its sole discretion, with or without cause or advance notice, through actions such as promotion, demotion, transfer, elimination, reclassification or reassignment.

With the exception of employment at-will, all terms and conditions of each employee's employment at Virginia Theological Seminary may be modified at the sole discretion of the Seminary at any time.

II. PURPOSE, ORGANIZATION AND GOVERNANCE

Mission Statement. Virginia Theological Seminary is a seminary of the Episcopal Church accredited by the Association of Theological Seminaries. It seeks to further the universal mission of Christ's church by providing graduate theological education and serving as a theological resource for the Anglican Communion and the wider church.

The Seminary's primary mission is to form persons for lay or ordained leadership and service in the ministry of the Church. Out of its evangelical heritage and its missionary tradition, it emphasizes the life of prayer, worship and community, the ministries of preaching, teaching, pastoral care and social justice. It seeks to prepare its students as servants of Jesus Christ to equip the people of God for their vocation and ministry in the world. It also provides continuing theological education for clergy and laity of all denominations. The Seminary believes that theological education leading to ordination normally requires full-time study and full participation in its common life and worship. It also believes that theological education is greatly enhanced when it is done within an ecumenical, international and cross-cultural context.

Mission Summary.

- a. To form men and women for lay and ordained leadership within community, with particular attention to raising leaders for the Episcopal Church.
- b. To provide continuing theological education for all people (clergy and laity of all denominations).
- c. To serve the Anglican Communion and wider Church.
- d. To provide an ecumenical, international, and cross-cultural context for theological education.
- e. To be an outstanding theological resource.
- f. To be a racially and ethnically diverse community in living out our mission.

Accreditation. The Seminary is fully accredited by the Association of Theological Seminaries in the United States and Canada (ATS). It has been accredited by the ATS since the Association first began to accredit institutions offering graduate professional theological education. ATS accreditation reviews are conducted every 10 years. The Seminary's most recent reevaluation and reaccreditation took place in 2013.

The standards for accreditation by the ATS are published and are available online at www.ats.edu and in the Bishop Payne Library. Persons who believe that the Seminary is not meeting these standards are encouraged to express their concerns in writing and address them to the Chair of the Board of Trustees or the Dean. The Chair or the Dean will determine an appropriate means to investigate the concerns to judge their validity, and to remedy them, if warranted. The Chair and the Dean will keep on file records of all correspondence and subsequent actions related to such concerns.

Board of Trustees. The corporate name of the Seminary is “The Protestant Episcopal Theological Seminary in Virginia.” The Seminary also operates under its legal fictitious name, “The Virginia Theological Seminary.” The Seminary’s structure of governance is set forth in the “Articles of Incorporation” of February 28, 1854, as amended June 2, 1942; the “Articles of Amendment Restating the Articles of Incorporation” of May 18, 1988; the “Articles of Amendment of the Articles of Amendment Restating the Articles of Incorporation” of May 20, 2015; and the “By-Laws” as revised on November 11, 1992, November 6, 2002, November 9, 2011, and February 8, 2017. The composition of the Board of Trustees, its powers, officers, committee structure, frequency of meetings, provision for elections to the Board, and other related matters of governance are set forth in these documents. The Board of Trustees acts also as the Board of Directors of the Corporation. The Board of Trustees has fiduciary responsibility for the Seminary. It is responsible for the Seminary budget, investments, audits and fiscal policy. It grants all degrees. It is responsible to plan for the Seminary’s future and to evaluate the implementation of such plans. It elects the Dean and other officers of the Corporation. It elects all members of the faculty. It may make other policies concerning any aspect of the Seminary’s work and life. The Board recognizes the authority of the faculty for the planning, design and oversight of the Seminary curriculum in the context of institutional purposes and resources.

Dean and President. The Dean and President (Dean), who is also President of the Corporation, is the chief executive officer of the Seminary. The Dean is elected by the Board of Trustees and serves at the pleasure of the Board. The Dean reports to the Board, attends all meetings of the Board and its Executive Committee and implements policies set by the Board. The Dean is a member of the faculty and presides at faculty meetings with both voice and vote. In the Dean’s absence, the Sr. Vice President for Academic Affairs presides at the faculty meeting. In the Dean’s extended absence, the Board may appoint an Acting Dean. The Dean’s work is evaluated in consultation with the Personnel Committee of the Board of Trustees.

Senior Administrative Cabinet. The Dean determines the membership of the administrative cabinet, which meets regularly for counsel to the Dean and for addressing matters of planning and policy. The cabinet includes the following persons as Senior Administrators who serve at the pleasure of the Dean and the Board of Trustees. As required by circumstances, the Dean may adjust the administrative roles and duties of all administrative faculty and staff.

- **Senior Vice President for Academic Affairs.** Senior Vice President for Academic Affairs: The Sr. Vice President for Academic Affairs is nominated by the Dean following consultation with the faculty, elected by the Board and serves at the pleasure of the Dean and the Board. The Sr. Vice President reports to the Dean. Responsibilities include oversight of the academic programs of the Seminary and are detailed more thoroughly in the faculty handbook. She or he is a member of the faculty with voice and vote and a Senior Vice President of the Corporation.
- **Senior Vice President for Finance, Administration and Operations.** The Sr. Vice President for Finance and Operations is nominated by the Dean, elected by the Board and serves at the pleasure of the Dean and the Board. The Sr. Vice President for Finance, Administration and Operations reports to the Dean. Responsibilities include oversight of the fiscal affairs of the Seminary, including budgeting, financial aid and financial reporting. In addition, the Sr. Vice President for Finance, Administration and Operations oversees the infrastructure of the Seminary, which includes facilities operations, internal housekeeping staff and mail center, contracts for dining, the refectory, lawn care services and cleaning services and information technology, and other projects as assigned by the Dean. The Director of Facilities Operations, Information Technology (or outsourced providers), Human Resources, the Butterfly House and the Caterpillar Club, report to the Senior Vice President for Finance, Administration and Operations. Normally, this is a staff position; it does not carry faculty responsibilities. In consultation with the Dean and Senior

Vice President for Academic Affairs, she or he may teach in her or his field as other responsibilities permit. She or he is a Senior Vice President of the Corporation.

- **Vice President for Communications.** The Vice President for Communications is nominated by the Dean, elected by the Board and serves at the pleasure of the Dean and the Board. The Vice President for Communications reports to the Dean. The VP for Communications will be responsible for the development, integration, and implementation of a broad range of public relations activities relative to the strategic direction and positioning of the organization and its leadership. Normally, this is a staff position; it does not carry faculty responsibilities. In consultation with the Dean and Senior Vice President for Academic Affairs, she or he may teach in her or his field as other responsibilities permit. She or he is a Vice President of the Corporation.
- **Vice President for Institutional Advancement.** The Vice President for Institutional Advancement is nominated by the Dean, elected by the Board and serves at the pleasure of the Dean and the Board. The Vice President for Institutional Advancement reports to the Dean. Responsibilities include oversight of all fundraising activities for the Seminary including the annual giving campaigns of alumni/ae, parishes and friends of the Seminary, capital campaigns and the preparation of planned giving instruments and grant proposals. In addition, the Vice President oversees the work of the Alumni/ae Association Executive Committee. Normally, this is a staff position; it does not carry faculty responsibilities. In consultation with the Dean and Senior Vice President for Academic Affairs, she or he may teach in her or his field as other responsibilities permit. She or he is a Vice President of the Corporation.
- **Vice President for Lifelong Learning.** Vice President for Lifelong Learning: The Vice President for Lifelong Learning is nominated by the Dean following consultation with the faculty, elected by the Board and serves at the pleasure of the Dean and the Board. The Vice President reports to the Dean. She or he has oversight of the non-credit bearing courses and programs, with responsibilities detailed more thoroughly in the faculty handbook. She or he is a member of the faculty with voice and vote and a Vice President of the Corporation
- **Associate Dean of Students.** Associate Dean of Students: The Associate Dean of Students is nominated by the Dean following consultation with the faculty, elected by the Board and serves at the pleasure of the Dean and the Board. The Associate Dean reports to the Senior Vice President for Academic Affairs. Responsibilities include oversight of the administrative structures that shape and support the pastoral experience of VTS students. She or he is a member of the faculty with voice and vote.

Personnel Policymaking. Generally, employees report directly to the head of their department or their department designee. Seminary policies and the enforcement of Seminary policies are the province of the Dean, who may consult with the Sr. Vice President for Finance, Administration and Operations and other Seminary employees.

III. EQUAL EMPLOYMENT OPPORTUNITY

Equal Employment Opportunity. Virginia Theological Seminary is an equal opportunity employer. The Seminary provides equal employment opportunity to all employees and job applicants without regard to an individual's race, color, national origin, sex, pregnancy, childbirth or related medical conditions including lactation, age, marital status, disability, sexual orientation, gender identity, status as a veteran, genetic information or any other

factor prohibited by applicable law. All aspects of personnel management – including hiring, promotion, demotion, transfer, recruitment, layoff, discipline, termination, compensation, benefits, training, and working conditions – will be administered in accordance with this policy. Each employee is expected to do their part to maintain a work environment free of discrimination, harassment and retaliation in the achievement of the mission of Virginia Theological Seminary as stated in its mission statement, Section II of this document.

Disability Accommodation. The Seminary strives to provide reasonable accommodation to individuals with a known physical or mental disability, in accordance with applicable law. An applicant or employee who requires an accommodation in order to perform the essential functions of their job should notify management and request an appropriate accommodation. The Seminary will then work with the applicant or employee to identify possible accommodations, if any, that will help to eliminate the limitation or barrier. If the requested accommodation is reasonable, would not impose an undue hardship on the Seminary and would not pose a direct threat to the health or safety of the individual or others, the Seminary will attempt to make the accommodation. The individual is required to fully cooperate with the Seminary in seeking and evaluating all accommodations and alternatives. Consistent with the law, the Seminary may require medical verification of both the individual's disability and the need for the requested accommodation.

Religious Accommodation. The Seminary strives to provide reasonable accommodations to applicants and employees in their observance of religious holidays and sincerely held religious beliefs, in accordance with applicable law. An applicant or employee seeking a religious accommodation must request it in writing to management as far in advance as possible under the circumstances.

Lactation Support. Virginia Theological Seminary supports employees' right to breastfeed and express milk when needed. Upon notice and request by an employee, the Seminary will provide reasonable unpaid break times for any employee to express milk for her nursing child for up to one year after the child's birth, and a place, other than a bathroom, that is shielded from view and free from intrusion from coworkers and the public, which may be used by the employee to express milk. This is intended to allow employees to return to work more easily and to create goodwill and a more productive atmosphere.

Discrimination and Harassment. The Virginia Theological Seminary confesses that human beings are created to love and glorify God and to share a life of mutual love and respect embracing the totality of their bodily existence. The Seminary believes that humans have, however, turned from God in sin, and mistreat and abuse one another instead of living together in love. As a seminary dedicated to fulfilling the promises made in The Baptismal Covenant (BCP p.304-5) to "persevere in resisting evil," "seek and serve Christ in all persons, loving our neighbors as ourselves," and "strive for justice and peace among all peoples, and respect the dignity of every human being," the Seminary seeks to provide an environment that is free of discriminatory and sexual harassment. The context in which Seminary community members live, work, study, and interact with other persons presumes the right of each individual to be respected as a person. All members of the community, especially those in authority over others, have an obligation to promote this environment.

The Virginia Theological Seminary believes that spiritual growth and wellbeing are best fostered in a community whose members feel safe. Virginia Theological Seminary is committed to providing a work environment that is free of discrimination and harassment. To fulfill this commitment, the Seminary strives to maintain an atmosphere in which all employees can pursue their work without coercion, intimidation or exploitation.

The Seminary will not tolerate actions, words, jokes or comments based on an individual's race, color, national origin, sex, pregnancy, childbirth or related medical conditions including lactation, age, marital status, disability, sexual orientation, gender identity, status as a veteran, genetic information or any other factor prohibited by

applicable law. In keeping with this commitment, the Seminary strives to be vigilant not to allow employees to be discriminated against or harassed by anyone, including any employee, vendor, volunteer or student of the Seminary.

In accordance with federal Equal Employment Opportunity Commission guidelines, sexual harassment is defined as unwelcome sexual advances, requests for sexual favors and other verbal or physical conduct of a sexual nature when:

- submission to sexual conduct is an explicit or an implied term or condition of an individual's employment;
- the submission to or rejection of sexual conduct by an individual is the basis for any employment decision affecting that individual; or
- sexual advances, requests for sexual favors or other verbal or physical conduct of a sexual nature have the purpose or effect of unreasonably interfering with an individual's work performance or create an intimidating, hostile or offensive working environment.

Harassment includes physical assaults on another employee, including but not limited to sexual assault and battery, molestation or attempts to commit these assaults; intentional physical conduct that is sexual in nature, including but not limited to touching, pinching, patting or brushing up against another employee's body; unwanted sexual advances, propositions, jokes, gestures or comments – whether made physically, orally, in print or by email – that are expressed in the presence of or directed toward any employee who has indicated that such conduct is unwelcome; and posting or otherwise displaying pictures, posters, calendars, graffiti, objects or other materials that are sexual in nature.

Employees who feel that they have experienced, witnessed or become aware of possible (1) discrimination based on an individual's race, color, national origin, sex, pregnancy, childbirth or related medical conditions including lactation, age, marital status, disability, sexual orientation, gender identity, status as a veteran, genetic information or any other factor prohibited by applicable law, or (2) sexual or other harassment, must promptly notify a member of management in writing to report such incident(s). All complaints and concerns will be investigated and will be kept as confidential as possible under the circumstances. The Seminary will not retaliate or otherwise penalize any employee for making a report about possible discrimination or harassment. Any employee found to have harassed or discriminated against another employee, or who knowingly made a false claim of harassment or discrimination, will be subject to discipline, up to and including termination of employment.

Virginia Theological Seminary is also committed to providing pastoral care to all involved with or affected by instances of child sexual abuse, adult sexual misconduct or discriminatory harassment. This may include providing guidance, support, consolation and communication, in an effort to minister as the Seminary believes God would desire.

Seminary employees who will be participating in a Seminary mission trip where they may interact with anyone under the age of 18 or in high Seminary are required to have completed the Workshop on the Prevention of Child Abuse and Child Sexual Abuse before the mission trip begins.

Certain categories of employees are required to complete certain sexual misconduct training, as follows:

- **Faculty and Staff**
 - Prevention of Child Abuse and Child Sexual Misconduct, Full Course
 - Prevention of Adult Sexual Misconduct, Full Course

- **Adjunct Instructors, Spiritual Directors, Writing Tutors, Teaching Assistants**
 - Prevention of Adult Sexual Misconduct, Abbreviated Course every five years
- **Butterfly House and Caterpillar Club teachers and staff**
 - Prevention of Child Abuse and Child Sexual Misconduct, Full Course every three years
 - Prevention of Adult Sexual Misconduct, Abbreviated Course every five years

General Convention Resolution 2006-A156.

Resolved, That the 75th General Convention of The Episcopal Church affirm the work already occurring in many dioceses and at the same time recommit itself to the positions taken by previous General Conventions that sexual misconduct (encompassing both sexual harassment and sexual exploitation) of adults by clergy, church employees and volunteer workers has been and continues to be of deep concern to this Church, is an abuse of trust, a violation of the Baptismal Covenant, contrary to Christian character and is, therefore, wrong; and be it further

Resolved, That each diocese adopt policies for the protection from sexual misconduct of those served by diocesan programs, those who volunteer in the work of the diocese or are employed by the diocese, and that dioceses assist congregations in the development of such procedures and policies, including using the many resources that already exist, that address the following:

1. the articulation of behavioral standards for all clergy, lay employees, and volunteers who work with adults or who provide pastoral counseling, pastoral care, spiritual direction, or the sacraments;
2. a screening process for all clergy, lay employees, and volunteers who provide pastoral counseling and care, spiritual direction, or the sacraments and who supervise clergy or lay volunteers;
3. education and training for all clergy, lay employees, and volunteers as listed above, with particular attention paid to what legally constitutes sexual harassment and to appropriate behavior and inappropriate sexual or sexualized behaviors towards adults, and with periodic refresher training encouraged;
4. guidelines for responding to concerns of sexual misconduct; and be it further

Resolved, That each diocese shall report to the House of Bishops Committee on Pastoral Development prior to the Spring 2009 House of Bishops meeting with a copy of its adopted and implemented policy and an evaluation of the history of its use. A summary report shall be made to the House of Bishops Spring 2009 meeting and a full report made to the 76th General Convention.

Retaliation. Retaliation is the punishment of an employee for engaging in legally protected activity, such as making a complaint of discrimination or harassment, making a complaint about workplace safety or for assisting with or otherwise participating in a workplace or governmental investigation. The Seminary strictly prohibits retaliation against any employee. Prohibited retaliation includes but is not limited to termination, demotion, suspension, failure to hire or consider for hire, failure to give equal consideration in making employment decisions, failure to make employment recommendations impartially, adversely affecting working conditions or otherwise denying any employment benefit. Employees who feel that they have experienced, witnessed or become aware of possible retaliation must promptly notify a member of management in writing to report such incident(s). All complaints and concerns will be investigated promptly and thoroughly and will be kept as confidential as possible under the circumstances. The Seminary will not retaliate or otherwise penalize any employee for making a report about possible retaliation. Any employee found to have retaliated against another employee, or who knowingly made a false claim of retaliation, will be subject to discipline, up to and including termination of employment.

IV. EMPLOYMENT PRACTICES AND PROCEDURES

Contact and Personal Information. For safety and operational reasons, it is important that the Seminary is on notice of each employee's current contact information and certain other personal information. This includes legal name, address, telephone numbers, email address, emergency contact information, benefit elections and tax exemptions. Employees are responsible for notifying the Seminary of any change in this information. Employees should also notify the Seminary of any training and experience they undertake or have completed that is relevant to their job or the Seminary's operations.

Immigration Compliance. The Seminary is committed to employing only United States citizens and aliens who are authorized to work in the United States and comply with applicable immigration and employment laws. As a condition of employment, every individual must timely (within 3 days of employment) complete the Employment Eligibility Verification Form I-9 and present original forms of appropriate documentation to the Seminary to establish proof of identity and employment eligibility. Former employees who are re-hired may be asked to complete a new I-9 form if their previous I-9 form is no longer retained or valid. Current employees may also be required to update the I-9 form from time to time, as requested by management.

Background Check. Employees are subject to satisfactorily passing – in the Seminary's sole discretion – background checks (including but not limited to a criminal record, sex offender registry, credit report, abuse and neglect and driving record check) as a condition of employment and continued employment. Failure to authorize the Seminary to conduct any background check may result in an applicant not being considered for a position and an employee to be terminated.

Employment Categories. The policies in this Staff Handbook apply to all Virginia Theological Seminary employees; however, some employment classifications may not be eligible for, or to participate in, all of the Seminary's benefits and benefit programs. The Seminary's categories of employment are:

- Full-time employees are employees who are regularly scheduled to work at least 30 hours per week.
- Part-time employees are employees who are regularly scheduled to work fewer than 30 hours per week and who are not temporary employees.
- Temporary employees are hired as interim replacements, to temporarily supplement the workforce or to assist in the completion of a specific project. Temporary employees retain their temporary status unless and until notified of an employment status change in writing by management, regardless of the number of hours worked.

Employees may further be classified as exempt or non-exempt under applicable laws requiring the payment of minimum wage and overtime. Exempt employees are not subject to minimum wage and overtime requirements.

Job Duties. Management (or management's designee) will explain to each employee their job duties, responsibilities and the standards of performance that will be expected during employment. The Seminary may modify, add to or remove job duties and responsibilities at any time. In addition to regularly assigned job duties and responsibilities, from time to time, employees may be asked to work on special projects or assist with other work important to the operation of the Seminary. Further, if circumstances dictate, the Seminary may elect or be

compelled to move its regular operations to a remote work platform. Each employee's cooperation and assistance in performing this additional work or working in an alternate way is expected.

It is also expected that all employees maintain a duty of loyalty to the Seminary. Employees must perform all job duties and assignments with the Seminary's legitimate business interests in mind at all times and must not take any action that would directly conflict with the Seminary's legitimate business interests. Employees must never take a corporate opportunity for their own personal benefit or the benefit of other third parties and must disclose all corporate opportunities obtained as a result of their employment with the Seminary to management.

Conflicts of Interest. The Seminary strives to ensure that all actual, potential and perceived conflicts of interest are disclosed to interested parties. No employee may substantively participate in any decision that involves an actual, potential or perceived conflict of interest, whether direct or indirect, without disclosure of all related information to management. A conflict of interest may exist in any situation in which an employee or family member of an employee is involved or may reasonably become involved in an activity or relationship which could adversely affect their judgment concerning their work for the Seminary. An employee with an actual, potential or perceived conflict of interest is to disclose that conflict to management.

Open Door Policy. Employment issues can arise in even the best of work environments. The Seminary encourages open communication between its employees and management. Typically, by doing this, issues can be resolved to everyone's satisfaction. If any employee has a question, concern or issue regarding their work, Seminary policy or any other workplace issue, they are to address that question, concern or issue with management. Please understand that there may be times the Seminary, including its management, is not aware of a certain workplace issue, and unless brought to the Seminary's attention, the issue may go undetected or unaddressed. Employees are free to raise a question, concern or issue with management without fear of reprisal.

Whistleblower Policy. It is the intent of Virginia Theological Seminary to adhere to all laws and regulations that apply to the Seminary. The underlying purpose of this whistleblower policy is to support the Seminary's goal of legal compliance. Accordingly, Virginia Theological Seminary requires all of its employees, officers, directors, agents and other people or entities associated with the Seminary to observe the highest ethical standards in the conduct of their duties and responsibilities for and participation with the Seminary. The support of all employees is necessary to achieve legal and regulatory compliance. If any employee reasonably believes that some policy, practice or activity of Virginia Theological Seminary or one of its officers, directors, Board members, employees, agents, volunteers or other people or entities associated with the Seminary is in violation of a law or regulation, that employee is required to file a written complaint with management. Examples of such circumstances include but are not limited to improper accounting, auditing or disbursements; conflicts of interest; financial self-dealing; dishonesty in business; and failure to comply with an applicable law or regulation. Once on notice of a report, the Seminary will investigate the complaint and take any action it deems appropriate under the circumstances. The Seminary may, depending on the scope, magnitude and nature of the situation, involve third parties (such as law enforcement) in its investigation and determinative action. It is a violation of this policy for any employee to retaliate against any other employee, person or entity for making a report under this whistleblower policy in good faith. It is also a violation of this policy to make a false or misleading written report of alleged misconduct under this policy.

Access to Personnel Documents. Employees are provided access to their own personnel record in accordance with applicable law. Typically, employees may inspect their own personnel record in the presence of a Seminary representative. Employees wishing to do so should contact management to request a mutually available time for an inspection. During an approved inspection, documents may not be altered or added to or removed from the file. Employees will likely not be allowed to view certain investigation records and other documents. Only

authorized Seminary employees and management have access to employee personnel files. However, the Seminary may provide others access, such as law enforcement officials and government agencies in accordance with applicable law.

Seminary Meetings. From time to time, the Seminary will hold employee meetings. These meetings are mandatory for all employees, as they are the Seminary's main opportunity to communicate important information about its work and expectations. Employees are given advance notice of these meetings. If an employee has a conflict with an announced meeting, he or she must promptly notify management and provide acceptable documentation as to the reason for the conflict.

Performance Management. From time to time, the Seminary may provide employees with evaluations of work performance. These evaluations may take place in written or oral form. They may be formal or informal. A performance evaluation is an opportunity for the Seminary to assess an employee's job performance, identify strengths, identify areas of improvement and establish work and developmental goals and objectives. A performance evaluation also takes into account an employee's job duties and responsibilities, adherence to Seminary policies, business development and other intangible factors. Performance evaluations are also a time when the Seminary solicits suggestions and constructive feedback pertaining to work performance, the Seminary and its operations. An evaluation may involve a written form or an in-person meeting, where among other things, the Seminary establishes upcoming objectives. During an evaluation, employees have the opportunity to address any topic they deem relevant and appropriate, including their professional interests and future goals. Performance evaluations may be a factor in employee compensation (raise, pay adjustment, bonus, etc.), position (promotion, demotion, change in job duties and responsibilities) and discipline (including the basis for termination of employment). From time to time, the Seminary may ask its employees to evaluate aspects of other employees' work. An initial evaluation will typically take place within 90 days of employment.

Advancement. The Seminary desires its employees to have the opportunity for promotion, if appropriate and available. Any promotion will be based on a number of factors, including quality and quantity of work, job performance, experience, educational background, attendance record, safety record, the ability to work well with others (including students), compliance with Seminary policy and the Seminary's needs and performance. Depending on the situation, the Seminary may also look outside the organization to fill its staffing needs.

Outside Employment. Holding multiple jobs can physically and mentally drain an employee's energy, and it can create a conflict of interest. That is why, for most employees, the Seminary generally discourages substantive employment outside of the Seminary. However, employees may engage in employment outside of the Seminary, provided that such work does not create a conflict with the Seminary, its students or its vendors, that such work does not conflict with the employee's availability and work schedule or that such work does not create a detrimental impact on the employee's performance for the Seminary. Employees who desire to engage in employment outside of the Seminary which may create a conflict of interest, create a conflict with their work schedule or affect their work for the Seminary, should obtain written approval from the Seminary Dean or their designee prior to accepting such employment. The Seminary will not assume any responsibility whatsoever for an employee's employment outside of the Seminary. Specifically, the Seminary will not provide workers' compensation coverage – or any other benefit – for injuries occurring from or arising out of any employment outside the Seminary. Please note that the Seminary may revoke its authorization of an employee's outside employment at any time. For the purposes of this policy, self-employment is also considered employment outside of the Seminary.

Confidentiality of Information. Virginia Theological Seminary requires that all employees respect the confidence placed in them by the Seminary and its employees, students, vendors and partners. The release of certain

Seminary, student information either deliberately or carelessly could be harmful to the Seminary and its employees, students and community members. The Seminary's confidential information is all of the Seminary's non-public business information, including but not limited to student lists, student information, pricing, finances, employee information, health information, services, costs, earnings, financial information, internal systems, policies, procedures, business practices, plans and processes. It is the obligation of each employee to keep such Seminary property and information confidential and unavailable to persons not involved in the Seminary's business. Therefore, employees should not divulge, disclose or use any confidential information of the Seminary or its students with any person who does not work for the Seminary. To help attain this protection, employees may not copy, record, download or store any confidential information of the Seminary or its students on or to an unapproved device or account, such as a personal cloud storage account, email account, computer, hard drive, flash drive or other storage or communication device or account. If anyone not affiliated with the Seminary questions an employee about any of the Seminary's confidential information, employees should immediately refer those requests to management. Employees may discuss confidential information relating to a particular student or vendor with that student or vendor in the general course of their work for legitimate business purposes. In addition, each employee must promptly notify the Seminary in the event that he or she becomes aware of any loss or unauthorized disclosure of any confidential information. Anyone who violates this policy may be subject to disciplinary action, and depending on the offense, the Seminary (or other affected party) may pursue appropriate legal action.

Media Contact. Employees should refer all media inquiries to the Director of Communications and should not speak to the media regarding a Seminary related issue without first contacting the Director of Communications.

Pets. Virginia Theological Seminary is a pet-friendly campus, but there are guidelines regarding domestic animals. Employees may have pets on Seminary campus, subject to Seminary approval. Such pets must have full vaccinations for rabies and other recommend diseases. Dogs on campus must be leashed at all times and under voice control of their handler. Employees bringing a pet onto campus must remove all waste produced by the pet. In outside areas of the Seminary, pet owners are expected to bring receptacles to care for and clean after their pets. With the exception of a bona fide service animal under the Americans with Disabilities Act, pets are not permitted in Seminary buildings including academic and administrative buildings, libraries, childcare center, maintenance, dining hall, Chapel, the Welcome Center and residence halls. Unleashed activity is only permissible in the dog park. Employees who request the assistance of a bona fide service animal on Seminary campus should contact Human Resources; employees may need to provide certification from a healthcare provider.

V. EMPLOYEE CONDUCT

Professionalism. Employees are expected to be professional in all that they do for the Seminary. Employees should always be on time and prepared for work, maintain a positive attitude, be honest and trustworthy, work hard and be flexible in on-the-job situations. Professionalism also includes working as a team, helping fellow employees, enthusiasm about the Seminary and its work, attention to detail, handling students and community members and their documents, information and property with care and respect and escalation of on-the-job concerns to management's attention. The mission of the Seminary is bigger than any employee's particular role, so employees are expected to be flexible in fulfilling that mission. Seminary employees serve the common good using basic values of integrity, impartiality and discretion. The Seminary believes integrity is of the utmost importance, which includes accountability and confidentiality. The Seminary encourages initiative and encourages employees to learn from their mistakes. Employees should seek to solve problems or direct others seeking help to those who can. Employees should strive not to leave problems unaddressed. The Seminary encourages employees to seek to resolve issues of concern rather than redirect blame, taking responsibility for their mistakes.

Attendance. Regular attendance and punctuality are essential to the efficient operation of the Seminary. As a result, the Seminary requires its employees to regularly attend work and to be punctual at work. All employees who are unable to report to work for any reason, or who will be arriving late, must notify management no later than 60 minutes prior to their scheduled start time, or earlier if possible. Leaving a message with a non-managerial employee is not acceptable. Similarly, when absent from work due to illness or for any other reason, the Seminary requires each employee to keep management informed of their status for work. This obligation is ongoing throughout the period of absence. The Seminary may contact an employee regarding their status for work, but it is ultimately the employee's obligation to do so. The Seminary reserves the right to require the certification of a healthcare provider for time not worked due to health reasons. Unexcused or unreported absences and tardiness may be grounds for discipline. In addition, the Seminary may consider unexcused or unreported absences of two or more consecutive days to be a voluntary resignation of employment by the employee.

Personal Appearance. Every member of the Seminary represents the quality of service and attention to detail it provides to students and community members. Appropriate attire, grooming and cleanliness all show that the Seminary and its employees recognize the importance of a professional appearance. In addition, many students and community members judge the Seminary, its services and its commitment to professionalism by the way in which employees present themselves. Simply stated, employees should look neat, clean and well-groomed, and be dressed appropriately for work. Employees are expected to use good judgment in their appearance and grooming, keeping in mind the nature of the work, their own safety and the safety of coworkers and their need to interact with students and the public.

Employees are expected to maintain clean, neat and appropriate dress and shoes and appearance. Below are a few general guidelines for employee professional appearance and hygiene.

- All employees should practice common sense rules of neatness, good taste and comfort.
- Personal appearance should include good personal hygiene.
- Clothing should be in clean, free of stains and soil, pressed condition.
- Overly strong scents are to be avoided; employees may suffer from allergies
- Ripped or torn clothing and garments that are unnecessarily revealing are not permitted (e.g., sides and/or stomach and/or entire back exposed).
- No employee should be dressed in such a manner as to be distracting to others or in a way that interferes with their work.
- The following types of clothing are generally not permitted: miniskirts or short skirts, tank tops, tube tops, halter tops, muscle shirts, sports team jerseys, midribs, spaghetti strap or strapless dresses or tops, beach wear or swim wear, cutoffs, athletic attire and offensive or explicit clothing.
- Shorts and t-shirts are generally prohibited but may be worn (consistent with all other policies) (i) by Seminary facilities or grounds employees, (ii) by or Butterfly House/Caterpillar Club employees, and (iii) with management approval, when employees are performing duties that require more casual attire.

The Seminary encourages employees to seek direction from management if they have questions regarding appropriate dress, appearance or hygiene at work. All interpretations and determinations under this policy are made at the sole discretion of Seminary management. Employees who report to work improperly dressed or groomed may be asked to rectify the situation, which may include changing, grooming themselves or being sent home to change or for the remainder of the workday.

Smoking/Tobacco Products. Virginia Theological Seminary is a tobacco-free work environment. Smoking and use of tobacco products (including e-liquid and vapor devices) are strictly prohibited inside any Seminary building,

within 25 feet of any Seminary building or during any Seminary event. Employees are expected to refrain from smoking or using tobacco products while working. Employees may smoke or use tobacco products when not working, but may not report to work smelling like smoke or tobacco products. Thus, employees who smoke or are around smoke must take reasonable steps to mask the odor of smoke. Employees are also expected to properly dispose of smoking or tobacco material waste.

Drug and Alcohol Use. The object of Virginia Theological Seminary's drug and alcohol policy is to: establish and maintain a safe, healthy environment for all members of the Seminary community; to insure the reputation of the Seminary, its students, faculty and staff within the Church; to reduce the number of accidental injuries to persons or property on or off Seminary property; to reduce absenteeism and tardiness and improve productivity; and to assist in securing rehabilitation assistance for any employees and students who seek such help. The Seminary prohibits the use, possession, manufacture, distribution, sale, transfer or purchase, and being under the influence, of any drugs prohibited under federal law on Seminary property, while engaged in Seminary business or while on duty. Likewise, the abuse of alcohol or legally prescribed drugs on Seminary property, while engaged in Seminary business or while on duty is prohibited. Alcohol may be served at certain events and in the 1823 café. The Seminary expects all employees who choose to consume alcohol to do so responsibly and to conduct themselves in a responsible manner. The Seminary reserves the right to test any employee for drugs or alcohol at any time. This includes but is not limited to whenever the Seminary has a reasonable suspicion that an employee is under the influence of drugs or alcohol while working. Reasonable suspicion may arise from observation, reports or complaints, performance decline, attendance, behavioral changes, results of searches, an employee's appearance, an odor of drugs or alcohol or other detection methods. Employees violating this policy, including the refusal to submit to a drug or alcohol test, are subject to disciplinary action, including termination.

Any employee who voluntarily comes to the Dean and indicates that he or she needs help to overcome a drug or alcohol problem will not be subject to discipline as a result of such report (if a first report of the problem) if he or she timely enters and successfully completes a rehabilitation program recommended by the Seminary and tests negative for drugs and alcohol upon completion of the program. While participating in a rehabilitation program, an employee may use available leave in accordance with Seminary policies. Upon successful completion of the program and negative drug and alcohol test, an employee will be returned, if possible and subject to Seminary discretion, to the position held prior to his or her self-referral. However, drug or alcohol problem notice and rehabilitation program completion may not excuse or impact discipline or other consequences for work-related actions by the employee prior to their report of a substance problem or work-related actions after such report.

Obligation to Report Arrest/Criminal Conviction. All employees must within 24 hours notify management of any arrest, citation, indictment, conviction, no contest or guilty plea or other adjudication of the employee for a felony offense, an offense involving moral turpitude or a drug or alcohol offense. This requirement does not apply to minor traffic offenses, but it does apply to offenses such as DUI and reckless driving. Depending on the severity of the situation, the Seminary may take disciplinary action.

Child Protection: Mandatory Reporting. Virginia law requires that any Seminary employee working in or with its child day center (a pre-school or nursery Seminary under Virginia law; the Seminary's Butterfly house employees and administrators) who, in their professional or official capacity, has reason to suspect that a child is an abused or neglected child, report that suspicion of abuse (physical, sexual or verbal) or neglect. All persons employed by the Seminary are required by law to immediately report any such suspicion of abuse or neglect to the local department of social services or to the Child Abuse and Neglect Hotline (1.800.552.7096). In lieu of personal reporting, Virginia law allows mandatory reporters with such an abuse or neglect suspicion to immediately notify the Seminary Dean, who will then take responsibility for the report. Va. Code § 63.2-100 defines an abused or

neglected child as any child under 18 years of age whose parent or any person responsible for their care (such as a childcare provider or foster parent):

- Causes or threatens to cause a non-accidental physical or mental injury;
- Has a child present during the manufacture or attempted manufacture of a controlled substance or during the unlawful sale of such substance where such activity would constitute a felony violation;
- Neglects or refuses to provide adequate food, clothing, shelter, emotional nurturing or healthcare;
- Abandons the child;
- Neglects or refuses to provide adequate supervision in relation to a child's age and level of development;
- Knowingly leaves a child alone in the same dwelling with a person, not related by blood or marriage, who has been convicted of an offense against a minor for which registration is required as a violent sexual offender; or
- Commits or allows to be committed any illegal sexual act upon a child, including incest, rape, indecent exposure, prostitution or allows a child to be used in any sexually explicit visual material.

In addition, in compliance with the law, a notice outlining child abuse and neglect reporting is posted in the Butterfly House, in the hallway outside the Director's office.

If an employee suspects any abuse or neglect of a child, they must immediately notify a member of Seminary management, who must promptly escalate the issue to the Seminary Dean. Together, the employee and the Seminary will assess each alleged or suspected situation of abuse or neglect and report or not report accordingly. Prior to beginning employment, all employees are required to complete online sexual misconduct training.

Inappropriate Employee-Student Conduct and Relationships. Virginia Theological Seminary is committed to fostering an environment that promotes academic and professional success in students and faculty at all levels. Such success is dependent on an environment free of behaviors that violate appropriate adult/student/child boundaries and undermine the mission of the Seminary. Any such inappropriate behavior – at the Seminary's ultimate discretion – is prohibited and may subject an employee to discipline, up to and including termination and possibly legal action. These types of inappropriate behaviors take many forms, including but not limited to:

- Unwanted, illegal or otherwise inappropriate physical contact or threat of physical contact;
- Sexual harassment (including any romantic relationship or act between a Seminary employee and a student);
- Harassment, including harassment based on a protected category;
- Lack of civility, including shouting, personal insults, displays of aggression and temper;
- Discrimination of any form, including in teaching and assessment;
- Requests to perform inappropriate personal errands unrelated to Seminary operations; and
- Evaluation based on factors unrelated to student performance, effort or achievement.

Housekeeping. Employees are expected to keep the Seminary and their work areas – wherever that may be – clean and organized. Employees are expected to clean up after themselves and dispose of trash properly, whether that be from meals, snacks, beverages or otherwise.

Energy Conservation and Waste Prevention. In order to be good stewards of the environment, employees are expected to conserve energy and resources whenever possible.

Telework. Teleworking is a discretionary work alternative that may be appropriate for some employees and some jobs in cases where individual, job and supervisor characteristics are able to be satisfied by such an arrangement. Teleworking allows employees to work at home, on the road or in a satellite location for all or part of their regular workday. Teleworking is not an entitlement. It is not a Seminary-wide benefit, and it in no way changes the terms and conditions of employment with the Seminary. Employees seeking to telework are to make that request to management in writing. Typically, telework is available only to those employees who have been employed with the Seminary for 12 consecutive months and who have satisfactory job performance. The Seminary has discretion in deciding whether an employee is a candidate for telework, depending on job duties, operational needs and particular employee considerations. If approved for telework, the arrangement will be documented and reviewed in time, to ensure that the employee is able to consistently and successfully perform their job duties working away from the office. The Seminary reserves the right to withdraw approval of telework at any time for any reason. Abuse of approved telework may result in discipline, up to and including termination. In addition, requests to telework as a reasonable accommodation due to an employee's disability are handled through the disability accommodation process.

Personal Use of Seminary Resources. Subject to Seminary policy, the use of Seminary property, equipment, tools, supplies, postage or any other resource for personal reasons is only allowed with prior management approval.

Use of Seminary Vehicles. The Seminary maintains vehicles for business purposes. Employees may only use these vehicles if and how authorized by the Seminary and the law. Employees are expected to use Virginia Theological Seminary vehicles in an appropriate and lawful manner and to keep Seminary vehicles neat and clean. The Seminary may assign, change, or withdraw its permission to use a Seminary vehicle at any time.

Only employees who have been approved by the Seminary and who have a current, valid driver's license may operate a Seminary vehicle. Operation of some Seminary vehicles may require a special driver's license. Employees who may drive Seminary vehicles may be subject to passing – in the Seminary's sole discretion – a driving record check as a condition of employment and continued employment. Employees who may drive Seminary vehicles must also provide the Seminary with a current copy of their active driver's license (including any active commercial license) and valid proof of auto insurance. Upon renewal, employees are to provide the Seminary updated copies of these documents.

Before use, employees must examine the Seminary vehicle for damage and mechanical or other issues. Any such damage or issue should be promptly reported to management. Employees must report all vehicle accidents, incidents, damage and moving violations to management. If an employee causes or is at fault in an accident or collision, the employee may be responsible for the fees, including any insurance deductible, implicated as a result of the accident or collision. The Seminary reserves the right to make all decisions regarding the use of Seminary vehicles and the cost and allocation of repairs.

In case of an accident or collision, if possible, employees are to:

1. Stop immediately; determine any injury to persons and property damage.
2. Avoid obstructing traffic.
3. Place emergency flags or flares.
4. Reasonably aid the injured and call for medical attention.
5. Obtain contact information of all parties and witnesses.
6. Contact Seminary management.

7. If applicable, make no statement to anyone about the accident or the Seminary, except to a police officer when required, Seminary management and the employee's (or the Seminary's) insurance company representative.

Employees driving Seminary vehicles are representing Virginia Theological Seminary. Employees should therefore use common sense and courtesy when driving. Each employee is responsible for complying with all driving laws, including applicable speed limits. Employees may *never* drive a Seminary vehicle aggressively or recklessly or use a cell phone unlawfully while driving a Seminary vehicle (texting, talking, internet, etc.).

Employees issued a moving violation, parking or other traffic ticket will be held responsible by the Seminary for payment of that ticket. By the employee's signature on the acknowledgement form, the Seminary may make the payment and deduct the funds from the employee's wages.

Use of Personal Vehicles for Seminary Purposes. Employees may use their personal vehicle for management-approved travel and may be eligible to receive mileage reimbursement. To be considered for reimbursement, employees are required to obtain prior management approval and maintain a clear, accurate mileage log for all Seminary-related mileage. Requests for mileage reimbursement should be timely submitted to management. For those who drive and operate Seminary vehicles, please see management for additional information.

Employees using their personal vehicles for management-approved travel are representing the Seminary. Employees should therefore use common sense and courtesy when driving and using their vehicle. Each employee is responsible for complying with all driving laws, including applicable speed limits. When using a personal vehicle for management-approved travel, employees may never drive aggressively or recklessly or use a cell phone unlawfully while driving (texting, talking, internet, etc.). Employees issued a moving violation, parking or other traffic ticket when using a personal vehicle for management-approved travel are responsible for their own actions and must face any related consequence and pay any related ticket, fine or fee.

Use of Seminary Communications Equipment and Systems. The Seminary owns, maintains and contracts for a number of communications equipment and systems. The Seminary's communications equipment and systems are the sole property of the Seminary. The communications and systems of the Seminary's vendors are the sole property of those vendors. Communications equipment and systems include but are not limited to the Seminary-provided internet connection and data plan; mail; electronic mail systems and accounts (email); instant messaging software and applications; video conferencing platforms; cloud storage accounts; courier services, facsimiles, e-fax systems, printers, photocopiers and scanners; telephone and voicemail systems (including wired and mobile phones); computers and computer networks; tablets; computer or other data storage devices, servers and modems; other software; computer files; online services; video equipment and tapes, tape recorders and recordings; closed-circuit television (CCTV) and all other physical security systems and devices, including access key cards and fobs; and all other associated computer, network and communications systems, hardware, peripherals and software.

Below are guidelines and requirements under the Seminary's communications equipment and systems policy:

- Subject to the Seminary's policies, employees should not use the Seminary's communications equipment and systems in a manner that interferes with the Seminary's operations or in a manner that interferes with any responsibility to Seminary employees. All employees are responsible for ensuring that they use the Seminary's communications equipment and systems in an effective, ethical, appropriate and lawful manner.

- Unauthorized use, destruction, modification or distribution of Virginia Theological Seminary's information contained on its communications equipment or systems, or of such communications equipment or systems, is strictly prohibited.
- Employees are to use Seminary communications equipment and systems for Seminary purposes. Employees must use Seminary communications equipment and systems in a manner that is consistent with performance of their duties, responsibilities and the law. Employees have *no expectation of privacy whatsoever* in any message, file, data, document, facsimile, telephone conversation, social media post, conversation or any other kind or form of information or communication transmitted, received, printed, stored or recorded on or otherwise relating to the Seminary's communications equipment and systems.
- The Seminary's confidential information and intellectual property are extremely valuable. Employees are to treat all confidential information and intellectual property accordingly and not jeopardize any such information, documents or property through their use of the Seminary's communications equipment and systems.
- Any attempt to circumvent Virginia Theological Seminary's password and security procedures is strictly prohibited.
- Employees are to use good judgment when downloading and opening email messages and attachments, including from unknown senders. If an employee suspects any message to be suspicious, he or she should not open it and should report the situation to management for direction.
- Employees must immediately report any security breach involving the Seminary's communications systems and equipment to management.
- In order to prevent misuse, the Seminary reserves the right to monitor, intercept, review, store, use, delete, destroy and disclose – without notice – any employee's communications and activities on the Seminary's communications equipment and systems. By an employee's use of the Seminary's communications equipment and systems, the employee consents to such actions by the Seminary.
- Sending, saving, accessing or viewing offensive material on Seminary communications equipment and systems is prohibited. Messages stored or transmitted by the Seminary's communications equipment and systems must not contain content that may reasonably be considered offensive. Offensive material includes, but is not limited to, pornography, sexual comments, jokes or images, racial slurs, gender-specific comments or any comment or material that would offend someone on the basis of the individual's race, color, national origin, sex, pregnancy, childbirth or related medical conditions including lactation, age, marital status, disability, sexual orientation, gender identity, status as a veteran, genetic information or any other factor protected by applicable law. Likewise, any use of the Seminary communications equipment and systems to harass or discriminate is strictly prohibited.
- Use of certain Seminary equipment or the access to certain Seminary communications systems and equipment may be restricted to employees who are specifically trained in the use of such systems and equipment. Management maintains exclusive discretion as to which employees are authorized to use and have access to Seminary systems, equipment and files.

- Personally identifiable information (PII) should not be stored on mobile communications devices (i.e. laptops, smartphones) or portable media (i.e. flash drives, DVDs or tapes). Examples of PII include: full name, home address, email address, date of birth, social security number, passport number, driver's license number, credit card numbers, etc. All PII that is electronically transferred must be protected by encryption.
- Employees must take precautions to ensure that student, staff and faculty pictures or other information will in no way be associated with content that may be considered objectionable or run counter to Virginia Theological Seminary's mission.
- Employees may not use Seminary logos, trademarks or intellectual property in any personal posting without the written consent of management.
- Unless otherwise noted, all software should be considered copyrighted work. Therefore, employees are prohibited from downloading or modifying software to Seminary communications equipment and systems without permission from management and the copyright holder. Employees must use caution and follow copyright guidelines in publishing and/or transmitting documents, images, video or other media.
- Employees may be assigned usernames and passwords for use in their work for the Seminary. Employees must only use their own assigned username to conduct work and must log off when finished to prevent unauthorized use of a username. Passwords, which may need to be changed from time to time, must be kept private and may not be shared with others; however, all passwords must be shared with Seminary management upon request.
- Email and communications systems and equipment may not be used for solicitation, political, commercial or public information purposes, unless approved by management. All community-wide emails (to entire faculty/staff or students) must be approved by management before distribution.
- All employees are expected to be able to use all Seminary systems and work equipment required for and consistent with their job duties.

Employees violating this policy may be subject to discipline, up to and including termination.

Social Media. Virginia Theological Seminary recognizes that the internet provides distinctive opportunities to participate in interactive discussions and share information on particular topics using a variety of social media. However, employee use of social media can pose risks to the Seminary's confidential information and reputation, expose the Seminary to legal claims and jeopardize the Seminary's compliance with certain laws and regulations. Employees should recognize that social media activities may be visible to current, past and prospective students, co-workers and community members, and that employees' position as a role model is a critical aspect of their employment with the Seminary.

The Seminary recognizes that employees engage in social media activities. Employees doing so should be mindful that their postings, even if done off premises and while off duty, could have an adverse effect on the Seminary and its legitimate business interests. To minimize these risks, to avoid loss of productivity and distraction from employees' job performance and to ensure that the Seminary's communications equipment and systems are used appropriately, the Seminary expects its employees to adhere to the rules and guidelines set out below regarding

the use of social media. For purposes of this policy, social media activities means viewing, posting, forwarding or otherwise communicating information on a website, blog, log, journal, diary, bulletin board, chatroom or other social networking forum or otherwise on or through the internet. Employees should observe the following guidelines:

- Employees' social media activities may never be used in any way that violates any other Seminary policy or employee obligation. If a social media activity would violate a Seminary policy in another forum, it will also violate that policy in an online forum. For example:
 - Employees' social media activities may not contain discriminatory, harassing, retaliatory, defamatory or offensive content.
 - Employees' social media activities must protect the confidential information of the Seminary and its employees, students and vendors.
- Employees may generally not conduct social media activities using the Seminary's communications equipment and systems, unless doing so is a requirement of the position held.
- Employees have *no expectation of privacy whatsoever* in any social media activity conducted on or through the Seminary's communications systems and devices. These activities, if and when approved, may be monitored, reviewed, stored, deleted, used or disclosed by the Seminary.
- Employees should consider that the Seminary has spent substantial time and resources building its reputation and goodwill. These are valuable and important assets to the Seminary. Before undertaking any social media activity that identifies any employee of the Seminary or that identifies the Seminary, employees must consider whether that post or activity may damage the Seminary's reputation. If an employee's social media activities include any information relating to the Seminary, that employee must clearly state in writing that:
 - The employee is speaking on their own behalf;
 - The views expressed are the employee's alone; and
 - The views have not been reviewed or authorized by the Seminary.
- Employees may not use the logo, trademark or proprietary graphics or photographs of the Seminary or its employees, students or vendors for personal use without management approval.
- Employees should recognize that they are more likely to resolve a workplace issue by speaking directly with co-workers or management than through social media activities.
- All social media activities on behalf of the Seminary must be approved by Seminary management.
- Employees should use caution and professional judgment in allowing others access to their online content and if establishing social media relationships with Seminary colleagues, particularly if employees are in a supervisory or subordinate setting.
- No employee's social media activities should discredit their position with the Seminary, the Seminary's work or the mission of the Seminary.

This policy is not intended to restrict communications or actions protected by law, such as employee discussion of collective terms and conditions of employment.

This social media policy applies even if employee social media activities are anonymous or conducted under a pseudonym. If employees do engage in social media activities, they should be aware that in appropriate circumstances, the Seminary may take steps to determine the origin, source and identity of the individual engaging in such activities.

Employees with any question or seeking clarification about any aspect of this policy are to contact management. Violations of this policy may result in discipline, and if appropriate, relevant parties may pursue all available legal remedies.

Use of Personal Devices. Personal electronic devices such as cellular telephones, PDAs, laptops, notebooks, ultra books, tablets and the like are generally not to be used during work time (before and after work and during breaks are not work time). Isolated, emergency use of personal electronic devices is generally understandable. Excess use of personal electronic devices – such as frequent texting – may result in discipline.

Solicitation and Distribution. Solicitation is any act of urging or persuading others to accept or pay for a product or service, contribute money, accept a doctrine to follow or join an organization. To prevent workplace disruption, to minimize distractions for all employees and to preserve Seminary security, solicitation and distribution of literature, materials, goods, contest promotions, requests for donations and all other solicitation or distribution is prohibited during work time and in work areas, or using Seminary equipment or distribution lists, unless approved by management in advance.

Illness and Disease in the Workplace. Employees with illnesses, conditions and diseases often wish to continue their normal pursuits, including work, to the extent allowed by their condition. The Seminary supports these endeavors as long as employees are able to meet acceptable performance standards and the essential functions of their job. As in the case of other disabilities, the Seminary will make reasonable accommodations in accordance with all legal requirements to allow qualified employees with illnesses to perform the essential functions of their jobs. Any employee privy to the medical information of another employee has a responsibility to respect and maintain the confidentiality of employee medical information on a need-to-know basis. Any employee inappropriately disclosing employee medical information is subject to discipline.

The Seminary expects employees with a communicable disease or who are exhibiting symptoms of a communicable disease to assure the safety of other employees, students and community members. Employees with a communicable disease or who are exhibiting symptoms of a communicable disease should stay away from Seminary property and Seminary-related events and must promptly inform management so that no employee, student, community member or vendor of the Seminary is put at risk. The Seminary will work with any employee to reasonably accommodate their continuing work or to provide information about medical leave, as may be appropriate. Employees with questions about this policy should contact management.

Relatives and Intimate Relationships at Work. The Seminary will not take adverse employment action against any employee for engaging in lawful relationships, either familial or otherwise, during non-working hours away from Seminary premises. However, employees involved in an intimate relationship with another employee are required to disclose their relationship to the Dean and President. The Seminary may consider such relationships harmful when they affect job performance, occur during work time or pose the threat of a conflict of interest or favoritism, whether perceived or real. In all situations, the Seminary may take any action it deems appropriate under the circumstances.

A familial or intimate relationship among employees can create an actual, potential or perceived conflict of interest in the employment setting, especially where one relative, spouse, partner, etc. supervises another. To avoid this problem, the Seminary may refuse to hire, reassign, terminate or place a relative or other intimately associated individual in a position where the potential for favoritism or conflict does not exist.

Code of Conduct. The image, reputation and goodwill of the Seminary are affected by how its employees conduct themselves. The Seminary strives to maintain a professional, pleasant, safe and productive workplace. In order to assure orderly operations and provide the best possible work environment, Virginia Theological Seminary expects all employees to follow rules of conduct that will protect the interests and safety of the Seminary, its services and its personnel. Employees are expected to adhere to all policies and procedures set forth by the Seminary. It is not realistic to list all the forms of inappropriate behavior that are considered unacceptable in the workplace or during employment. The following are examples of conduct that may – in the Seminary’s sole discretion – result in disciplinary action, up to and including termination of employment. The following list is not intended to cover all possible forms of unacceptable conduct, but it serves as a guide:

- Violation of any Seminary policy or rule.
- Refusal to accept or follow management’s directives.
- Poor work performance or failure to perform assigned work.
- Inability to accept or implement corrective action.
- Engaging in work that creates a conflict of interest with the Seminary.
- Conducting personal business on Seminary time.
- Misuse of Seminary email, information technology, communications systems and equipment.
- Improper use or disclosure of Seminary, student or vendor confidential information.
- Unauthorized or inappropriate use, removal or possession of Seminary property, documents, material, equipment, vehicles, systems, funds or time.
- Defacing, damaging or destroying Seminary property, whether by neglect, carelessness or mischief.
- Falsifying or destroying records, including employment applications, resumes, attendance or personnel records, time records, leave records or other Seminary documents, regardless of when the falsification or destruction is discovered.
- Dishonesty, theft, fraud or sabotage.
- Unauthorized use, removal or possession of the property of others.
- Tardiness, unexcused or repeated absence from work, over-extending break periods, sleeping on the job or abandonment of position.
- Failing to obtain permission or notify supervisor when leaving work during working hours.
- Working overtime without prior approval or refusing to work scheduled overtime.
- Failure to attend scheduled meetings, training sessions, meetings or commencements.
- Failing to provide a certification from a healthcare provider.
- Discrimination, harassment or retaliation in any form.
- Interfering with another employee’s ability to perform their job duties.
- Harassing, bullying or intimidating employees, students, community members, vendors or visitors.
- Fighting or attempting bodily injury to another employee, student, community member, vendor or visitor; threatening such conduct or otherwise harassing or acting discourteous toward employees, students, community members, vendors or visitors.
- Use of obscene, vile or abusive language on the job.
- Acting in a disrespectful, inappropriate or unprofessional manner to employees, students, community members, vendors or visitors.
- Horseplay, disorderly conduct or neglect of applicable healthcare guidelines that may create a hazard at

work or endanger the wellbeing of others.

- Failure to use assigned safety equipment.
- Failure to immediately report to a supervisor an accident, injury or illness that occurred on Seminary premises or in the scope of employment to the Seminary.
- Creating or contributing to unsanitary conditions.
- Possession or use of weapons, explosives or illegal substances or intoxicants on Seminary property or Seminary business.
- Working under the influence of or unauthorized possession of alcohol, marijuana, illegal drugs or the prescription drugs of another while on Seminary property or Seminary business.
- Gambling in the workplace.
- Engaging in illegal conduct.
- Engaging in conduct that may damage the reputation or welfare of the Seminary or its employees.

Discipline. Any action by an employee which reflects poorly on the Seminary, impedes Seminary operations, is a hindrance to the effective performance of an employee's job function or that violates a Seminary policy constitutes improper employee conduct and may be considered cause for disciplinary action, up to and including termination of employment. Virginia Theological Seminary uses various forms of discipline, which may include one or more of the following:

- Oral warnings and reprimands.
- Written warnings and reprimands.
- Written notice of performance deficiencies.
- Suspension (with or without pay).
- Reduction in pay and benefits.
- Demotion.
- Termination.
- Other forms of discipline as determined by Seminary management.

The Seminary imposes discipline on a case-by-case basis. While one or more of the forms of discipline may be taken, no formal order of or procedure for discipline is required. If the Seminary deems disciplinary action necessary, it will determine the appropriate level of discipline, taking into consideration factors such as the act in question, the seriousness and impact of the act, the employee's work record, prior disciplinary record and any mitigating circumstances. Depending on the nature of the action or issue, the Seminary may also choose not to offer an employee a subsequent contract for employment or terminate an employee's employment altogether. In all situations, the Seminary will impose discipline in any form or manner it chooses at its absolute discretion; this includes immediate termination for a first act, violation or offense.

VI. TIME AND PAY PRACTICES

Hours of Work. The Seminary's normal business hours are Monday through Friday, 8:30 am until 5:00 pm EST. However, certain staff members may be expected to perform work outside of the Seminary's normal business hours given the nature of their work. All employees are expected to be ready to begin the workday at their scheduled start time. Given the nature of the Seminary's operations, additional hours, weekend hours and overtime hours (consistent with the Seminary's overtime policy) may be required throughout the calendar year, based on operational needs. From time to time, the Seminary may amend its and its employees' work hours and

workdays. Employees may be present in the office after regular business hours as long as they comply with all Seminary policies, management is aware of their presence and they maintain proper safety and security measures.

Meals and Breaks. Non-exempt employees working a full workday are recommended to take an unpaid meal period each workday. All employees may take reasonable break periods during the workday (typically not to exceed 15 minutes), depending on work schedule and workload. During a break, employees should not leave Seminary property without management approval. Non-exempt employees leaving the property for a meal (when permitted) or taking breaks longer than 10 minutes must clock out prior to leaving and clock back in upon return; such meal or break time will be unpaid.

Overtime. Non-exempt employees will be paid overtime pay for all hours worked in excess of 40 in one workweek, or as otherwise required by applicable law. When operating requirements or other business needs cannot be met during regular work hours, the Seminary may schedule or require non-exempt employees to work overtime. All overtime work must be authorized in advance by Seminary management before the overtime work is performed. vacation, holidays and periods of absence, paid or unpaid, are not counted for purposes of calculating an employee's overtime hours and premiums. "Comp time" is receiving time off in lieu of overtime pay when overtime is worked; comp time is not permitted.

Exempt employees are expected to work as much as necessary to complete their job duties and responsibilities. No overtime or additional compensation will generally be paid to exempt employees for this work.

Inclement Weather. In the event of inclement weather, Seminary management will decide whether the Seminary is open, closed or if there is a delayed opening or early closing. Seminary management will also decide whether any off-site work can or will take place. As soon as a decision has been made, the Seminary will notify employees. If appropriate and efficient under individual circumstances, the Seminary may allow employees to work from home in the event of a particular safety issue. In addition, if the office is open but an employee does not feel safe traveling to work, he or she may generally use available vacation or request to telework that day if the position allows.

Compensation Practices. Employee compensation may be reviewed from time to time. Pay raises (and downward adjustments, if necessary) may occur at the discretion of Seminary management. Some points for consideration are quality of work, quantity of work, individual effort, individual initiative, critical thinking, attendance and punctuality, safety, attitude, workplace orderliness and cleanliness, teamwork, communication skills, versatility, adaptability, as well as considerations relating to the Seminary and its operations, success and finances.

Payroll Procedure. This Payroll Procedure policy describes some of the basic rules concerning timekeeping and payroll procedures, as well as the steps employees should follow to ensure that they are paid properly for all time worked.

- **Pay Period.** Seminary's workweek begins on Sunday at 12:00 am and ends on Saturday at 11:59 pm.
- **Paydays.** Employees are typically paid every two weeks.
- **Advancement of Wages.** The Seminary does not advance wages.
- **Review Each Paycheck.** The Seminary works hard to ensure that all employees are paid correctly. Employees should review each paycheck to ensure they are correct – the hours worked (for non-exempt

employees) and the pay. Employees who believe that an error has occurred or with a question about a paycheck must promptly report the issue to management.

- **Payroll Deductions.** The Seminary is required by law to deduct certain amounts from employee paychecks under applicable federal and state law. Deductions may also be taken for other taxes or obligations. These amounts may fluctuate depending on the amount of each paycheck, the number of tax deductions claimed, or for other reasons. Employees with a question about a deduction from a paycheck must promptly report the issue to management.
- **Non-Exempt Employees.** Non-exempt employees must record all time they actually work each day, regardless of whether they are paid a salary or by the hour. This includes time an employee spends working that may take place in that employee's typical off-hours, if such work time is more than de minimis (lasting more than a few minutes). Arrival, departure, meal and extended break times must be recorded accurately. This should be done on Seminary timesheets. Non-exempt employees should not work any time that is not authorized by management. Non-exempt employees should not start work early, finish work late, work during a meal break or perform any other extra or overtime work unless directed or authorized to do so by management. Non-exempt employees are prohibited from working "off the clock" (work without reporting the time worked). No employee may instruct nor encourage another employee to work "off the clock" or to incorrectly report hours worked.

VII. BENEFITS

At this time, Virginia Theological Seminary offers a benefit program to certain eligible employees. A more complete description of applicable benefits offered to qualified employees is set forth in the Seminary's applicable benefits manual. All benefits are subject to elimination or change at any time in the Seminary's discretion. All benefits are governed by the terms of each individual benefit plan. Employees should consult Seminary management regarding the specific benefits available to them and the details (and eligibility periods) of those benefits.

Discounts, Favors and Gifts. In all professional discussions, including those with students, community members, vendors and visitors, employees represent the Seminary. If an employee would like to solicit or request a discount or free service from a Seminary student, vendor or other business contact, he or she must request and receive Seminary management's prior written approval to do so. If an employee is offered or provided a discount, ticket, pass, special offer or benefit as a result of their professional contact or relationship with a student, vendor or other person, the employee must inform management prior to accepting the benefit. Such benefits, if offered, may be made available to employees at the Seminary's discretion.

VIII. LEAVES OF ABSENCE

Holidays. The Seminary typically observes the following holidays:

- New Year's Day
- Martin Luther King, Jr. Day
- Presidents' Day
- Good Friday
- Easter Monday

- Memorial Day
- Juneteenth
- Independence Day (If the holiday falls on a Saturday, Friday will be observed; if on a Sunday, Monday will be observed.)
- Labor Day
- Thanksgiving Day
- The Friday after Thanksgiving Day
- Christmas Break (December 24 through December 31)

Regular, full-time employees receive holiday pay for all above holidays observed by the Seminary, when the employee is regularly scheduled to work and the office is closed. Employees must be actively employed to receive holiday pay. In order to receive holiday pay, employees must also work their last scheduled workday prior to the holiday and their first scheduled workday following the holiday (or take approved vacation on those days).

Paid and Other Forms of Leave. The Seminary provides certain forms of paid and other leave to eligible employees. In addition to the forms of leave set out in this handbook, various types of paid and other forms of leave observed by the Seminary are set out in the Seminary's benefit manual.

Family and Medical Leave. The Seminary will grant unpaid medical leave to eligible employees in accordance with the Family and Medical Leave Act (FMLA) and other applicable law. Employees who become aware of the need for a period of FMLA leave should contact management as soon as the need for leave is identified. Generally, the FMLA entitles eligible employees to take up to 12 weeks of unpaid, job-protected leave in a 12-month period for specified family or medical reasons:

- Birth/care/adoption of child of employee
- Placement with employee of a son/daughter/parent with a serious health condition
- Unable to work because of own serious health condition

To be eligible for FMLA benefits, an employee must have worked for Virginia Theological Seminary for a minimum of 12 months and at least 1,250 hours over the previous 12 months. At the Seminary's expense, the Seminary may require a second or third medical opinion regarding an employee's own serious health condition. Employees are expected to cooperate with the Seminary in obtaining additional medical opinions, if necessary.

Virginia Theological Seminary designates the 12-month period in which an employee may take FMLA leave for a qualifying reason by measuring a 12-month period forward from the date the employee first takes FMLA leave. If two spouses work for the Seminary, they are limited to a combined total of 12 weeks of FMLA leave due to the birth, adoption or foster placement of a child or to care for a parent with a serious health condition. Spouses remain eligible to take FMLA leave individually for other FMLA-qualifying reasons from the time that remains out of the original 12-week leave designation.

Employees are expected to provide prompt notice to the Seminary of any change to an employee's return to work date. Accepting other employment, continuing to work in another job or filing for unemployment insurance benefits while on leave may be treated as a voluntary resignation from employment. When leave is for planned medical treatment, employees must attempt to schedule such treatment as not to unduly disrupt the Seminary's operations. Please contact the management prior to scheduling planned medical treatment.

While on medical leave, the Seminary will continue making its contributions toward the employee's group health benefits, if applicable, on the same terms as if the employee had continued to work. An employee's length of

service as of the leave will remain intact but accrued benefits will not accrue while on an unpaid FMLA leave. Employees may be required to use all available paid leave concurrent with periods of unpaid FMLA leave. Under most circumstances, an employee will be reinstated to the same position held at the beginning of the medical leave or to an equivalent position with equivalent pay, benefits and other employment terms and conditions. However, an employee has no greater right to reinstatement than if he or she had been continuously employed rather than on medical leave.

“Key employees,” as defined by law, may be subject to reinstatement limitations in some circumstances. “Key employees” will be notified of this status and the possible limitations on reinstatement at the time of requested medical leave.

Prior to being allowed to return to work from medical leave, an employee must submit a release from a healthcare provider – acceptable to the Seminary – that certifies that the employee is able to return to work and perform the essential functions of their job.

FMLA Policy for Butterfly House Employees Only

For employees of the Butterfly House who are approved for Family Medical Leave for a period greater than 30 days for reasons other than maternity/paternity leave, at the approval of the Dean and President or the Senior Vice President for Finance, Administration and Operations, the Seminary may provide a one-time \$5,000 hardship assistance payment to the employee on day 31 of the approved leave.

Military Leave. The Seminary complies with applicable laws concerning military leave. If employees are called to serve in the military, they must provide the Seminary with as much notice of the need for leave as is reasonable and practicable under the circumstances. In addition, employees must provide the Seminary with a copy of the active-duty orders when requesting leave for military reasons. Questions about military leave should be directed to Seminary management.

Election Officer Leave. Employees may take paid leave to serve as an officer of election (a person appointed by an electoral board to serve at a polling place for any election), provided the employee provides reasonable notice to management of the need for leave and submits proof of service. Time off for election officer leave will be paid and exempt employees will not incur any reduction in pay for a partial week of absence due to election officer leave. Verification from a representative of the electoral board of having served may be required. Employees are expected to report or return to work for the remainder of their work schedule on any day that they are dismissed from duty as an officer of election.

Jury and Witness Duty. The Seminary encourages employees to serve on jury or witness duty when called. Employees must notify management of the need for time off for jury or witness duty as soon as a notice or summons from the court or a subpoena is received. Any employee called to serve on jury or witness duty will continue to receive their regular wages by the Seminary, though the Seminary may offset the pay employees receive for jury and witness duty against their regular wages. Thus, exempt employees must report to the Seminary all fees received for their jury or witness duty. Verification from the court clerk of having served may be required. Employees are expected to report or return to work for the remainder of their work schedule on any day they are dismissed from jury or witness duty.

Time Off to Vote. The Seminary encourages all employees to fulfill their civic responsibilities and to vote in official public elections. Generally, working hours are such that employees will have ample time to vote before or after work. If an employee finds themselves with insufficient time to vote, however, he or she is to discuss the matter with management. The Seminary will comply with all applicable state and municipal voting time laws.

Other Personal Leave. Requests for other personal leaves of absence will be considered and evaluated on an individual basis. If approved, this other personal leave will be unpaid. Approval or denial of such requests will be entirely at the discretion of the Seminary. In determining the feasibility of granting such requests, factors such as the purpose of requested leave, availability of coverage for job responsibility during the requested leave, previous absences, length of employment, prior work records and performance and similar issues will be considered. Such requests for other personal leave must be submitted in writing to Seminary management as far in advance as possible. If granted, an employee's benefits will generally cease and will not accrue during a personal leave period.

If other personal leave is granted, the Seminary will attempt to return an employee to their former position or a comparable position upon return; however, the Seminary makes no guarantee of reinstatement. An employee performing unapproved outside employment during a period of other personal leave will be considered to have voluntarily resigned from the Seminary.

Employees on approved extended personal leave are asked to confirm their return date at least 2 weeks before they anticipate returning to work, or otherwise, as soon as practically possible. The Seminary reserves the right to require a certification from a healthcare provider – acceptable to the Seminary – that the employee is able to return to work and perform the essential functions of their job before the employee returns to work. Any request for extending a period of other personal leave must be made as soon as possible. Employees on other personal leave who do not return as scheduled and fail to request or cannot show good reason why an extension should be granted, will be considered to have voluntarily resigned as of the day the original leave expired. The Seminary reserves the right to require an employee to exhaust all accrued vacation prior to taking other personal leave.

IX. SAFETY AND SECURITY

Safety. The Seminary strives to provide clean, safe and healthy working conditions for all employees. No employee will knowingly be required to work in an unsafe manner. Safety is every employee's responsibility, and employees are expected to do everything reasonable and necessary to ensure safety on Seminary premises and while on Seminary business. The Seminary expects employees to properly use the personal safety equipment provided to them.

All offices, desks and other storage spaces are provided for the convenience of employees but remain the sole property of the Seminary. The Seminary may inspect these spaces (as well as anything found in them) and all other places on Seminary premises at any time. The Seminary is not responsible for personal property brought onto, stored in or left on Seminary property.

In order to ensure the safety and security of employees, students and community members, and to protect the Seminary's legitimate business interests, the Seminary reserves the right to question, inspect and search any employee or other individual entering onto or leaving Seminary premises. The inspection or search may include any bags, packages or items that the individual may have brought onto the premises or may be carrying (including briefcases and handbags). These items are subject to inspection and search at any time, with or without prior notice. Sometimes, the Seminary may require the individual to self-inspect their personal property or person by

displaying the contents of any bag, package or item by turning out the item or his, her or its pockets in the presence of a Seminary representative.

Employees must maintain control over their keys and other equipment allowing access to Seminary property. Such keys and equipment are not to be loaned out at any time, unless to Seminary personnel with a business reason for access. Employees must promptly report lost or stolen keys or access equipment to management. Employees may be charged the replacement cost for any lost property.

OSHA. Workplace safety is of the utmost importance. The Seminary is dedicated to meeting Occupational Safety and Health Administration (OSHA) standards for the workplace. Every employee is expected to contribute their best efforts to making the Seminary safe for employees, student and community members, including adhering to applicable handwashing, sanitization and other hygienic guidance. Employees are to bring to the Seminary's attention any concern they may have about OSHA compliance, safety or security. Employees should use personal protective equipment (PPE) in accordance with applicable law or regulation, as and if appropriate. Employees are to use universal precautions to prevent contact with bodily fluids. Any employee who has an exposure incident to bodily fluids must report it immediately to management.

Work-Related Injuries. The Seminary maintains workers' compensation insurance consistent with applicable law. This insurance is intended to address covered injuries and illnesses sustained in the scope of employment that require medical, surgical or hospital treatment. An employee who sustains a work-related injury or illness must inform management of any injury or illness immediately – no matter how minor an on-the-job injury or illness may appear. Prompt reporting may help an eligible employee qualify for workers' compensation benefits or other coverage. Neither the Seminary nor its insurance carrier will likely pay workers' compensation benefits for an employee's injury taking place in a voluntarily, off-duty, recreational, social or athletic activity sponsored by the Seminary.

Return to Work. If an employee is out of work (due to an illness, disability, on a medical leave of absence, other personal leave or otherwise) the Seminary may require the employee to provide written certification from a healthcare provider – satisfactory to the Seminary – that the employee is able to return to work and resume their normal job duties and essential functions. The Seminary, at its expense, may elect to appoint a healthcare provider to conduct a return-to-work evaluation, seeking a second or subsequent opinion.

Workplace Violence. The Seminary at all times strives to ensure the safety and wellbeing of its employees, students and community members. This policy is intended to govern behavior which may cause injury or fear of injury to a Seminary employee, student, community member, vendor, visitor or property. Examples of violent behavior include verbal abuse, physical assault and battery, stalking, verbal threats, bullying, intimidation, harassment, possession, use or illegal carrying of weapons and destruction of property, including sabotage of electronic equipment and systems. Violence or conduct that creates the threat of violence to the Seminary, or its employees, students, community members, vendors or visitors, is a violation of policy and will not be tolerated. The Seminary will work closely and swiftly with law enforcement personnel in response to any violence or threat of violence.

Employees who have experienced, witnessed or become aware of actual or possible workplace violence must immediately contact a member of management. All reports will be investigated and will be kept as confidential as possible under the circumstances. The Seminary will not retaliate or otherwise penalize any employee for making a report about actual or possible workplace violence. Any employee found to have threatened or engaged in workplace violence, or who knowingly made a false claim of workplace violence, will be subject to discipline, up to and including termination of employment. The Seminary reserves the right to take whatever action it deems to

be in the best interest of its operations, employees, students, community members and property.

Weapons Free Workplace. Virginia Theological Seminary is a weapons free workplace. The possession of a weapon in or on a Seminary building, vehicle or property (including in personal vehicles parked on Seminary property) or while on Seminary business is strictly prohibited. In limited and appropriate situations, such as for culinary purposes or for the Seminary's security team, the Seminary Dean may provide an employee a written exception to this policy upon request and explanation. A weapon is any object or substance used, attempted to be used or intended to inflict a wound, cause injury or incapacitate, including but not limited to all firearms, explosive agents, chemicals, air or canister propelled guns, knives with blades over three inches, martial arts weapons or any other weapon described in Va. Code § 18.2-308. A violation of this policy may result in discipline, up to and including termination.

Emergencies. Employees are responsible for becoming familiar with all Seminary fire, disaster and safety regulations. Every accident should be reported immediately to the Dean and President or the Vice President of Finance, Administration and Operations. If needed, corrective action will be taken to eliminate a hazardous condition in accordance with the Seminary's policies and procedures. In the event of an emergency, employees should call for police/paramedics (911) and inform the Dean and President or the Vice President of Finance, Administration and Operations immediately.

Hazardous Chemicals. Products used at the Seminary have been labeled by the manufacturer to alert employees to hazardous chemicals. At the start of employment and when changes in tasks or procedures occur or new chemicals are introduced, the Seminary will strive to provide employees who have occupational exposure to hazardous chemicals with training on or information about such changes or new chemicals.

Visitors in the Workplace. The Seminary allows properly authorized visitors on its premises. This authorization process helps to maintain safety standards, safeguard employee, student and community member welfare, protect Seminary property and facilities, guard against the disclosure of confidential information and reduce workplace distractions and disturbances. If a visitor comes on Seminary property at the invitation of an employee, that employee is responsible for the visitor's conduct, limited access and safety.

X. SEPARATION OF EMPLOYMENT

Resignation. At-will employees who have decided to leave their employment with the Seminary should provide a written, signed notice of resignation at least 2 weeks prior to their anticipated departure date, unless otherwise approved by management. Upon receipt of this written resignation notice, depending on the situation and its operational needs, the Seminary may decide to accept the resignation effective immediately. Employees receive their final paycheck with the next regularly scheduled payroll cycle after separation. Vacation may not be used in lieu of working time during the period from notice of resignation to separation. Employees who leave without working the minimum resignation notice time will forfeit all applicable and allowable benefits and documentation of inadequate notice will be included in their personnel record. Employees working under an employment agreement must comply with the terms of that agreement.

Exit Interview. Upon notice of an employee's separation of employment, the Seminary may conduct an exit interview with the departing employee to discuss the separation, any pending work, current passwords, benefits and issues and to accept the return of all Seminary property (in all forms).

Return of Seminary Property. Employees are responsible for protecting and controlling all items issued to them by the Seminary or in their possession and control, such as student lists, student information, Seminary equipment, devices, keys, cards, handbooks, manuals, written materials and all other property. Upon separation of employment – or upon request by the Seminary at any time – employees must immediately return to the Seminary all property of the Seminary issued to the employee and all property of the Seminary in the employee’s possession or control (including all property of the Seminary the employee may have given or disclosed to third parties, for whatever reason). This return of property requirement applies to Seminary property in all forms (hard copy, electronic, tangible or otherwise). No property or information originating from or belonging to the Seminary or its students or vendors may be retained, used or disclosed by the employee after separation of employment without the written authorization of Seminary management. Please note that the Seminary will protect its and its students’ and vendors’ property to the fullest extent of the law.

Continuation of Health Benefits. Separating employees who are not terminated for misconduct may be entitled the opportunity to participate in continuing health insurance coverage under applicable law. The Seminary, or its designee, will provide the separating employee applicable information within applicable timelines.

Unemployment Benefits. As a church-affiliated entity, the Seminary does not contribute to the Virginia unemployment insurance program. However, subject to applicable law, unemployment compensation may be available to former employees as a result of their separation from employment with the Seminary. Employees are to direct any questions regarding unemployment benefits to the Virginia Employment Commission.

Employment References. The Seminary’s general employment reference policy is to provide a neutral reference. When asked to provide verification of employment or an employment reference for an employee or a former employee, the Seminary generally confirms the employment and discloses the period of employment and the title of the position(s) held. Only Seminary management is authorized to release employee reference information on behalf of the Seminary. All requests for employment references should be submitted to Seminary management. Employees providing employment references not approved by management may be subject to discipline.

XI. ACKNOWLEDGMENT

I acknowledge that I have received a copy of Virginia Theological Seminary's Employee Handbook. I understand that it is my responsibility to read the entire Employee Handbook and understand the policies contained in it. If I have a question concerning any policy or information contained in the handbook, I will discuss it with Seminary management. I agree to abide by the policies and information contained in this Handbook, as well as any revisions to it. I understand that the Handbook is not a contract between the Seminary and any of its employees, including me, that the Handbook does not create an express or implied contract between me and the Seminary and that the Handbook and any of its provisions are not to be interpreted as a contract. Rather, the Handbook contains information about the key employment policies of Virginia Theological Seminary. As such, I also understand that my employment with the Seminary is at-will, meaning that my employment may be terminated at any time, for any reason or no reason, with or without cause, with or without notice, by me or by the Seminary (unless I have a valid, written employment agreement signed by the Seminary Dean and President stating otherwise). I also understand that the Seminary retains the right to change, modify, delete or add to the policies and information contained in this Handbook at any time, with or without prior notice.

Employee Signature

Print Name

Date